

Imteyaz Ahamad v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 4 January 2024 · 2024:AHC:1448-DB · WRIT - C No. 34829 of 2023 · **Disposed; fresh theft assessment under the Supply Code after hearing.**

HEADNOTE

A writ against a recovery citation for alleged electricity-theft dues was disposed when the Electricity Department withdrew the citation and offered a fresh assessment after objections. The respondents must finalize that assessment under the procedure in the Uttar Pradesh Electricity Supply Code, 2005, consider the petitioner's objections, and give him a hearing. Liability and quantum were not decided.

FACTUAL SUMMARY

Imteyaz Ahamad challenged in the Allahabad High Court a recovery citation dated 2 August 2023 for electricity dues said to arise from theft. On 23 November 2023 counsel for the Electricity Department stated that recovery stood stayed until a final assessment order. On 12 December 2023 the Department told the Court that a final assessment had been passed. On 4 January 2024 instructions from the Executive Engineer recorded that the recovery certificate had been withdrawn and that the petitioner could file objections before a fresh assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh assessment after withdrawal of a theft recovery citation

HOLDING

On the Electricity Department's stand that the recovery citation dated 2 August 2023 for electricity-theft dues had been withdrawn, and that the petitioner could file objections before a fresh assessment, the writ was disposed with a direction that the respondents finalize the assessment afresh under the procedure prescribed by the Uttar Pradesh Electricity Supply Code, 2005, duly consider any objection, and give the petitioner an opportunity of hearing. ¶ 1-3

FLAG The order names the Uttar Pradesh Electricity Supply Code, 2005 and no numbered clause. Catalog hits on new-connection and final-bill clauses do not fit this theft-assessment direction.

PRINCIPLE TAGS

fresh-assessment-under-supply-code-after-withdrawal-of-theft-recovery-citation Where the licensee withdraws a recovery citation for alleged electricity-theft dues and invites objections before a fresh assessment, the writ is disposed by directing that the assessment be completed under the Uttar Pradesh Electricity Supply Code, 2005, with objections considered and a hearing given. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ALLEGED ELECTRICITY-THEFT DUES, AND FOR WHAT AMOUNT

The recovery citation was withdrawn. Liability and quantum were left to a fresh assessment after objections and hearing. ¶ 2-3